

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 36-005
Amendments to Title 6 of the Chickasaw Nation Code
(Code Section References)

PASSED

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, The Chickasaw Tribal Legislature has previously enacted rules and procedures codified at Title 6 of the Chickasaw Nation Code, and

WHEREAS, The Chickasaw Tribal Legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; omission without deletion of substance is signified by "***"):

"SECTION 6-501.88

ACCOUNT SETTLEMENT AND ALLOWANCE;
REPORTS; CONSOLIDATION OF REPORTS;
ACCOUNTING INFORMATION.

A. Except as otherwise provided by Subsection B below, a Guardian or Limited Guardian of the Property shall, upon the expiration of a year from the time of appointment, and at least annually thereafter, present accounts to the Court for settlement and allowance as part of the Guardianship Report as required by Section 6-501.91 ~~6-308.91~~ of this Act.

B. Annual Accountings:

1. In addition, a Guardian or Limited Guardian of the Property shall:

b. with the annual report of accounts, report any changes of Property listed on the inventory required by Section 6-501.87 ~~6-308.87~~ of this Act. The report shall state the compensation requested by the Guardian and for the attorneys.

D. Reports:

1. Unless waived at the discretion of the Court, a Guardian or Limited Guardian of the Person of an Incapacitated or Partially Incapacitated Person shall file a report on the Guardianship of the Person pursuant to Section 6-501.90 ~~6-308.90~~ of this

Act.

3. A Guardian or Limited Guardian of the Property of a Ward shall file a report on the Guardianship of the Property pursuant to Section 6-501.91 ~~6-308.91~~ of this Act.

SECTION 6-501.90

**REPORT ON GUARDIANSHIP OF INCAPACITATED OR
PARTIALLY INCAPACITATED PERSON.**

C. Whenever there are changes or proposed changes to the Guardianship Plan, an Individual Guardianship Plan, substantially in the same form as provided in Section 6-501.61 ~~6-308.61~~ of this Act, shall be submitted with the Guardianship Report and shall show any such changes or proposed changes in the Guardianship Plan since last submitted to and approved by the Court.

SECTION 6-501.91

**CONTENTS OF REPORT ON GUARDIANSHIP OR
LIMITED GUARDIANSHIP OF PROPERTY OF WARD.**

D. Whenever there are changes or proposed changes to the Guardianship Plan, an individual Guardianship Plan for the management of financial resources, substantially in the same form as provided in Section 6-501.63 ~~6-308.63~~ of this Act, shall be submitted with the Guardianship Report and shall show any such changes or proposed changes in the Guardianship Plan since last submitted and approved by the Court.

SECTION 6-501.92

**MAILING OF COPIES OF ANNUAL REPORT UPON
FILING; HEARING; REPORT WITHOUT NOTICE;
COMPENSATION; NEW BOND; APPOINTMENT OF
COUNSEL TO REPRESENT WARD.**

A. Annual reports; Copies:

1. Upon the filing of an annual report the Court shall immediately cause a copy of the report to be mailed by first-class mail to:

a. the Persons entitled to notice pursuant to Section 6-501.26 ~~6-308.26~~ of this Act for Minors; or

b. those Persons entitled to notice pursuant to Paragraphs 1, 2, 3 and 7 of Subsection A of Section 6-501.53 ~~6-308.53~~ of this Act for Adults; and

B. Hearing on an Annual report; Notice:

2. Notice for a hearing on an annual report shall be given, by mail, to the Persons entitled to notice pursuant to Section 6-501.26 ~~6-308.26~~ of this Act for Minors or Paragraphs 1, 2, 3 and 7 of Subsection A of Section 6-501.63 ~~6-308.53~~ of this Act for Adults at least ten (10) days prior to the date set for the hearing. Notice shall be in such form as the Court may direct and shall be sent by regular first-class mail.

SECTION 6-501.93**APPLICATIONS TO COURT FOR RELIEF; CONTENTS FOR APPLICATION; NOTICE AND HEARING; ORDER; APPOINTMENT OF COUNSEL; JOINDER; EVALUATION OF WARD; HEARING WITHOUT NOTICE.**

C. Any Person entitled to notice of the hearing on an application filed pursuant to this Section may object to the relief requested in the application. If the Ward is a Minor, notice shall be as provided by Section 6-501.26 ~~6-308.26~~ of this Act. If the Ward is an Incapacitated or Partially Incapacitated Person, notice shall be given to those Persons entitled to notice pursuant to Paragraphs 1, 2, 3 and 7 of Subsection A of Section 6-501.53 ~~6-308.53~~ of this Act and shall be given as provided by Section 6-501.53 ~~6-308.53~~ of this Act and to the attorney of the Subject of the Proceeding, if any, and if known to the petitioner.

SECTION 6-501.130**TIME EXPIRATION ON ORDER OF SALE.**

No order of sale granted pursuant to Sections 6-501.116 ~~6-308.116~~ through 6-501.135 ~~6-308.135~~ of this Act continues in force more than one (1) year after granting the same, without a sale being had.

SECTION 6-501.138**REMOVAL OR RESIGNATION OF GUARDIAN.**

D. Upon termination of the disability of the Ward or upon his death, or upon the resignation or removal of the Guardian or Conservator, a Guardian or Conservator or the Guardian's or Conservator's Personal representative, or if the Guardian or Conservator is Incapacitated or deceased and there is no Personal representative, then some suitable Person appointed by the Court shall file the Guardian's or Conservator's final account and request for final compensation with the Court within thirty (30) days after such event.

1. The Court shall set the final account for hearing on a date not less than fifteen (15) days after the filing thereof. Notice of such hearing shall be given at least ten (10) days prior to the date set for hearing, by mailing a copy of the notice of hearing by first-class mail:

a. if the Guardianship was established for a Minor or a Minor's Estate, to the Persons entitled to notice pursuant to Section 6-501.26 ~~6-308.26~~ of this Act if the Ward is still a Minor, or to the Ward only if the Ward has attained majority or has married, or if the Ward is deceased, to the Persons entitled to notice pursuant to Section 6-501.26 ~~6-308.26~~ of this Act and to the personal representative of the Ward's Estate if such representative has been appointed and the representative's appointment is known to or ascertainable by

reasonably diligent efforts of the Person rendering the final account; or

b. if the Guardianship was established for an Adult or an Adult's Estate, or if the proceeding is a Conservatorship action, to those Persons entitled to notice pursuant to Paragraph 1, unless the Ward is deceased, and Paragraphs 2, 3 and 7 of Subsection A of Section 6-501.53 ~~6-308.53~~ of this Act and, if the Ward is deceased, to the personal representative of the Ward's Estate if such representative has been appointed and the representative's appointment is known to or ascertainable by reasonably diligent efforts of the Person rendering the final account.

SECTION 6-501.143

REPORT OF ABUSE OF INCAPACITATED PERSON OR MINOR; FAILURE TO REPORT; IMMUNITY FROM LIABILITY; FALSE REPORT.

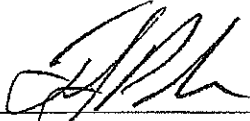
A. Any Person having reasonable cause to believe that an Incapacitated Person, a Partially Incapacitated Person, or a Minor is suffering from Abuse, Neglect, or Exploitation shall make a report to the Chickasaw Nation Indian Child Welfare Department, the office of the Court Advocate or the Chickasaw Lighthorse ~~Bureau of Indian Affairs~~ police department as soon as such Person is aware of the situation.

SECTION 6-601.2

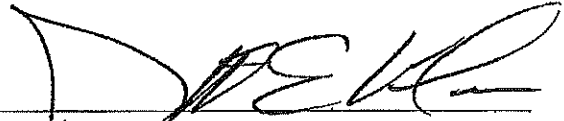
PROCEDURE TO CONFER RIGHTS OF MAJORITY; DECREE.

Any minor desiring to obtain the rights of majority for the purposes named in Section 6-601.1 ~~6-309.1~~ may, by his next friend, file a verified petition in the District Court setting forth the age of the minor petitioner and that said petitioner is then and has been a bona fide resident within the jurisdiction of the Chickasaw Nation for at least one (1) year next before the filing of the petition, and the cause for which the petitioner seeks to obtain the rights of majority. The petition should state whether or not the parents of the minor are living, and if living, their names and addresses; whether or not a guardian has been appointed for the minor and, if a guardian has been appointed, the guardian's name and address; who has legal custody of the minor and, if the person having legal custody is not a parent or the guardian, the name and address of the person who has custody. The District Court, being satisfied that the said petitioner is a person of sound mind and able to transact his affairs and that the interests of the petitioner will be thereby promoted, may, in its discretion, order and decree that the petitioner be empowered to exercise the rights of majority."

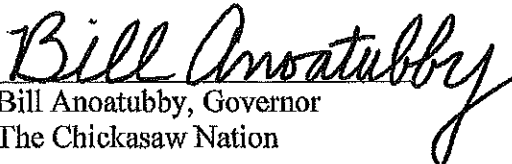
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on May 17, 2019, by a vote of 12 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:  Date: MAY 28 2019
Bill Anoatubby, Governor
The Chickasaw Nation

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 36-005
Amendments to Title 6 of the Chickasaw Nation Code
(Code Section References)

Explanation: This resolution approves and adopts corrections to referenced Code sections in Title 6 of the Chickasaw Nation Code.

Presented By: Legislative Committee